

The Residences at Rocky Ridge

5700 Rocky Ridge Landings Drive • Westerville, OH 43081
(614) 855-7675



1. RESIDENCY AND FINANCIALS

1.1 PARTIES AND OCCUPANTS

This lease (hereinafter referred to as the Lease) is made this day of 09/30/2023 by and between **The Residences at Rocky Ridge LLC**. (Hereinafter referred to as the Landlord) and (hereinafter referred to jointly and severally as the Tenant). The covenants and conditions stated in the Lease shall bind all tenants jointly and severally in issues of contract and negligence.

Elsa Woldeyesus

1.2 PREMISES LEASED

The Landlord, in consideration of the rent to be paid, and covenants and agreements to be performed by the Tenant does hereby lease the following described premises located at:

5724 Nineteen Rock Crossing
Westerville, OH 43081

Including a stove, refrigerator, dishwasher, microwave, and washer and dryer (if applicable) owned by Landlord. (Hereinafter referred to as the premises).

The Landlord, where not required by law, may discontinue any facilities, amenities, gratuitous or such services rendered by the Landlord and furnished to several Tenants on a common basis, not expressly covenanted for herein, it being understood that they constitute no part of the consideration for the Lease.

1.3 LEASE TERM

The Tenant agrees to occupy said Premises for an original term commencing on, 10/01/2023 and ending 09/30/2024 . After the expiration of the original term of this agreement, the Lease shall automatically renew, at a new monthly rental rate and under the same terms and conditions, on a (2) two-month to (2) two-month basis unless notice is given as stated in paragraph VII.

1.4 RENT

The Tenant agrees to pay as rent for the Premises \$1,195.00 dollars per month to be paid in advance of the first day of each month during the said term without a demand. All payments of rent shall be made payable online or at such other address as the Landlord may from time to time designate. If Tenant shall occupy said Premises prior to the beginning of a full month, the total monthly payment will be pro-rated for that period and shall be payable in advance, plus:

Garbage and Recycling	\$20.00
TLL20	\$19.95
Rent Income	\$1,195.00
Total:	\$1,234.95

Please note that all charges above represent monthly charges.

(lease term may not be the same as the apartment)

Rent is due on or before the first day of each month (the due date). If all rent is not received on or before the 3rd day of the month, rent will

be considered delinquent, and the Tenant agrees to pay a late charge of \$200 and \$5 per day until all outstanding balances are paid in full. All rent payments are to be made online. All funds received shall be applied to late charges; damage charges; utility charges; service fees; delinquent rent; current rent; in that order. If payment is made by check that is returned, the Tenant agrees to pay a \$50.00 charge in addition to the initial late charge, if applicable.

The Landlord may, at any time, require that all rent and other sums be paid in either certified or cashier's check or money order. Cash shall not be accepted. Tenant is responsible for identifying the premises for which the payment is to be applied.

If required by law, Landlord will supply a rental receipt to Tenant after receipt of payment if payment is made by cashier's check, money order or via the phone. Tenant agrees and permits Landlord to send receipt of payment via email to the email on file. In the event there are multiple leaseholders, Tenant agrees that Landlord shall only send receipt to primary leaseholder's email. Tenant agrees that it is Tenant's responsibility to notify Landlord in writing in the event the primary leaseholder's email needs changed or if the receipt needs sent to another leaseholder.

The Tenant agrees further that acceptance and/or refusal by the Landlord of the rent payment after the due date shall in no manner constitute a waiver of the Landlord's rights in the event of the Tenant's failure to make rental payments as herein prescribed and agreed, nor shall it be considered as a change in the date upon which the Tenant is to pay said rent. Failure to demand the rent when due shall not constitute a waiver by the Landlord. Tenant by signing this Lease, knowingly and voluntarily waives any right to later assert waiver as affirmative defense in any subsequent forcible entry and detainer action.

The Landlord agrees to notify the Tenant, in writing, at least thirty (30) days prior to the expiration of the Lease, or any renewal thereof, of any increase in the rent charged for occupancy of the Premises.

Tenant acknowledges that Landlord is an Ohio Legal Entity and must be represented by an attorney in eviction procedures. Equity situations will not be considered unless Tenant reimburses Landlord for all rent, late fees, charges, fees, costs and expenses and attorney fees, incurred by Landlord because of Tenant's breach. (Eviction settlement fee is \$495.00). Landlord reserves the exclusive right to refuse all late payments

1.5 OCCUPANCY

The Tenant agrees that only those persons listed below shall occupy the Premises:

Elsa Woldeyesus

No person shall be released from the covenants of the Lease without first obtaining the written agreement of the other tenants and/or cosigners set forth herein and written approval of changes from the Landlord. If such changes are agreed upon, all parties herein agree to make the necessary changes to the Lease before changes are valid.

The Tenant agrees that the Premises are to be occupied for residential purposes only. The Premises shall not be used or allowed to be used for any unlawful purpose, or for any purpose deemed hazardous by the Landlord because of fire or any other risk or in any other manner which would disturb the peaceful, quiet enjoyment of any other occupant of the apartment community of which the Premises are a part. The Landlord reserves the right of eviction for any criminal or illegal activity and/or the illegal manufacture, distribution, use or other illegal activities in connection with controlled substances. A criminal conviction shall not be necessary before the Landlord can institute an eviction action.

1.6 SECURITY DEPOSIT (IF APPLICABLE)

The tenant agrees to deposit with the Landlord the sum of \$100.00 as security for his or her faithful performance under the Lease and by law. The Tenant agrees the deposit is not an advance payment of rent and does not relieve the obligation to pay rent including rent for the last month of occupancy. The Landlord, at the expiration of the Lease or hold-over tenancy, may apply the security deposit for past due rent, fees, utilities, service fees, and/or for the cost of repairing damages beyond reasonable wear and tear to the Premises caused by the Tenant, his/her guests, family, or invitees. Also, abandonment or vacating of the Premises by the Tenant before the end of the term shall result in the Landlord deducting damages, he has incurred from the security deposit.

Each of the tenants shall be jointly and severally responsible for all losses incurred by the Landlord occasioned by the tenancy, including negligence. Tenant specifically acknowledges that a reasonable amount for carpet cleaning charging will be deducted from Tenant's security deposit.

The Tenant agrees to provide the Landlord, in writing, a forwarding address upon vacating the Premises. Provided that the Tenant has left a forwarding address, Landlord will return to the Tenant the balance of the security deposit after applying the security deposit towards any tenant obligations under the Lease, including but not limited to unpaid rent and damage to the Premises. The balance of the deposit will be refunded as provided herein within thirty (30) days after the expiration or any renewal of the Lease and delivery of possession of the Premises to the Landlord, whichever is last to occur. Any deductions from the security deposit shall be itemized and identified in writing by the Landlord during this same time period. This provision does not waive rights of the Landlord to seek damages in excess of the security deposit. The Tenant agrees to reimburse the Landlord for any rent, fees, utilities, or service fees due and/or damages exceeding the security deposit. Tenant agrees to and consents to the final payment for utilities usage being deducted from the security deposit.

1.7 KEYS

The Tenant will be provided **TWO (2)** apartment key(s). Tenants should arrange to obtain mailbox keys directly from their local post office. These keys may not be duplicated. There will be a \$50.00 re-keying charge for any apartment keys not returned upon vacating. If you lock yourself out of your apartment and / or garage and need assistance in entering, M-F 8am to 4pm there will be a \$95 fee & after 4pm but before 8am will carry a fee of \$195. Weekends & Holidays there will be a \$195 fee.

1.8 MOVE OUT NOTICE AND RENEWAL

Unless another Lease is signed by the parties hereto or unless written notice of termination is given by the lease holders, at least sixty (60) days before expiration date set in paragraph II of the Lease, the Lease shall be automatically renewed on a (2) two month to (2) two-month basis (on the same terms and conditions of the original lease). The landlord is to provide the lease holders a minimum of a thirty (30) day notice that the lease holders lease will not be renewed by the landlord. At the expiration of the original term of the Lease, Landlord may adjust the rental amount to the current market rate plus the current month to month fee. Landlord agrees to provide Resident in writing, any such adjusted rental amount thirty (30) days prior to the adjusted rate. The adjusted rental rate will become effective the first day of the month following the end of the original lease term or renewal term. Verbal notice to vacate is not sufficient. No per diem move outs will be accepted. All lease holders must sign Notice to Vacate form to be put on notice.

1.9 ABANDONMENT OF PROPERTY

We or law officers may remove all property remaining in the apartment or in common areas (including any vehicles you or any occupant or guest owns or uses) if you are judicially evicted or if you abandoned the apartment.

You have abandoned the property when: (1) move-out date has passed and no one is living in the apartment in our reasonable judgment; or (2) you have turned in keys and/or pass cards or provided us with a written forwarding address or new address; or (3) everyone appears to have moved out in our reasonable judgment; and (4) clothes, furniture, and personal belongings have been substantially removed in our reasonable judgment, or (5) you have been in default for non-payment of rent for five (5) consecutive days or water, gas, or electric service for the apartment not connected in our name has been terminated; and (6) you have not responded for two (2) days to our notice left on the inside of the main entry door, stating that we consider the apartment abandoned.

Surrender, abandonment, and judicial eviction end your rights of possession for all purposes and give us the immediate right to: clean up, make repairs in, and re-let the apartment; determine any security deposit deductions; and remove property left in the apartment. Under Ohio Law, if a Tenant abandons the Premises or is evicted during the term of this Lease, the Tenant's liability to pay rent continues until the expiration of the Lease term or until the Premises are re-occupied. Tenant agrees to hold harmless and indemnify Landlord for disposition of any such personal property abandoned at the Premises as provided in this section.

1.10 UTILITIES

Tenant shall not allow utilities, other than cable TV, to be disconnected by any means (including non-payment of bill) until the end of the Lease term or renewal period. Tenant expressly agrees and understands that Tenant's water bill and/or Tenant's electric bill may be administered by Landlord or a third-party utility manager, for which administration Tenant agrees to pay a commercially reasonable service fee. Landlord at its sole discretion may also implement a Ratio Utility Billing System or a fixed-fee system. Tenant agrees further to pay reasonable costs for common area usage utilities and trash. Tenant further agrees that Tenant will be responsible for any late fees associated with late payment of water/electric. A \$10 per month penalty will be added for all water & electrical charges, between \$1 to \$49, which remain unpaid after the due date. A \$20 per month penalty will be added for all water & electrical charges, between \$50 to \$99, which remains unpaid after the due date. A \$30 per month penalty will be added for all water & electrical charges, \$100 or \$149, which remain unpaid after the due date. A \$50 per month penalty will be added for all water & electrical charges, \$150 or more, which remain unpaid after the due date.

Tenant shall immediately place all other required utilities in his/her name with the appropriate utility company, and Tenant agrees to reimburse the Landlord for any utility bills paid by the Landlord during Tenant's responsibility under the Lease. Utilities shall be used only for normal household purposes and not wasted. Failure to pay utilities, service fees, or disconnection of the electric or gas service due to non-payment by Tenant for more than five (5) days shall be considered material non-compliance under this Lease.

You will be charged for the full period of time that you were living in, occupying, or responsible for payment of rent or utility charges on the apartment. If you breach the Lease, you will be responsible for utility charges for the time period you were obligated to pay the charges under the lease, subject to our mitigation of damages. We are not liable for any losses or damages you incur because of outages, interruptions, or fluctuations in utility services provided to the apartment unless such loss or damage was the direct result of negligence by us or our employees. You release us from any and all such claims and waive any claims for offset or reduction of rent or diminished rental value of the apartment due to such outages, interruptions, or fluctuations. You agree not to tamper with, adjust, or disconnect any sub-metering system or device. Violation of this provision is a material breach of your Lease and may subject you to eviction or other remedies available to us under your Lease.

1.11 PETS

Please be advised that not all our communities allow dogs or pets. No pets may be brought onto any part of the Premises at any time (including visiting pets) except at the expressed written consent of the management as contained in a separate pet agreement, and all applicable fees and charges are paid. This policy is at the sole discretion of the Landlord. If any unauthorized pets are found in or on the premises, an immediate eviction notice will be served at which time Tenant will have three (3) days to permanently remove the animal or said eviction will be initiated. If a pet has been in the apartment at any time during the Tenant's term of occupancy (without the Landlord's consent), all pet fees will be retroactive to the date of this lease agreement and tenant may be charged for defleaing, deodorizing, and/or shampooing, and/or other damages occasioned by the pet. Rottweiler, Pit Bulls, Chows, German Shepherd, Dalmatian, Staffordshire Terrier, Akita, Husky, Malamute and Doberman breeds of dogs are prohibited. This applies to pure bred and mixed breed dogs that have similar physical and behavioral characteristics or lineage. Tenant acknowledges and consents that any pet privilege fee that may be assessed by Landlord is for the privilege of having a pet and is not in any way additional deposit pursuant to Ohio Revised Code § 5321.16.

It's the tenant's responsibility to pick up and dispose of their pet waste. Failure to do so will result in a \$95 first occurrence fine and a \$125 second occurrence fine and possible eviction.

1.12 INSURANCE

Tenant will be responsible for insuring all the Tenant's personal property within the Premises. Tenant is required to obtain Tenant Legal Liability Insurance coverage directly from **The Residences at Rocky Ridge LLC** and be in place for the full term of this lease, including lease renewals. The Landlord is not responsible for insuring tenant's personal property and tenant hereby releases and agrees to hold Landlord harmless from any and all losses, claims, damages, or injuries that can be insured under the required personal liability policy. It's the tenant(s) choice to purchase a Renters Insurance policy, with a minimum of \$300,000 and this policy shall be in place for the full term of the lease, including lease renewals, and have **The Residences at Rocky Ridge LLC** listed as an interested party. Failure to provide proof of insurance in the future shall be a default under this lease and will result in a \$100 lease violation fee per month. Tenant(s) hereby releases the Landlord of all risk that can be insured there under.

1.13 USE AND ASSIGNMENT/SUBLETTING

The Tenant agrees that the Premises shall be used only as a dwelling unit and for no other purpose; nor shall Premises or any part thereof be sublet or assigned, nor shall the number or name of occupants be increased or changed, without written consent of the Landlord, which may be granted or withheld in its sole discretion.

By initialing below, you acknowledge and agree to the terms in Section 1.

X EW
Elsa Woldeyesus

2. DUTIES AND RESPONSIBILITIES

2.1 TENANT'S DUTIES

The Tenant shall:

- A. Keep the Premises that he/she occupies and uses safe and sanitary;
- B. Dispose of all rubbish, garbage, and other waste in a clean, safe and sanitary manner approved by the landlord;
- C. Keep all plumbing fixtures in the premises or used by the Tenant as clean as their condition permits;
- D. Use and operate all electrical and plumbing fixtures properly;
- E. Comply with the requirements on Tenants by all applicable state and local housing, health and safety codes;
- F. Personally refrain, and forbid any other person who is on the Premises with his/her permission, from intentionally or negligently destroying, defacing, damaging, or removing any fixture, appliance or, other part of the Premises;
- G. Maintain in good working order and condition any range, refrigerator, washer, dryer, dishwasher, or other appliances supplied by the landlord;

H. Promptly notify the landlord of the need for repairs;

I. Conduct him/her and require other persons on Premises with his consent to conduct them in a manner that will not disturb his neighbors "peaceful enjoyment" of the Premises. Use good judgment and thoughtfulness for others in use of his/her apartment and not to commit or allow any nuisance;

J. Not unreasonably withhold consent for the Landlord or his/her agents to enter the Premises;

K. Conduct himself, and require persons in his household and on the Premises with his consent to conduct themselves, in connection with the Premises so as not to violate the prohibitions contained in Chapters 2925 and 3719 of the Revised Code, or in municipal ordinances that are substantially similar to any section in either of those chapters, which relate to controlled substances;

L. Tenant shall regularly test all smoke detectors, and notify Landlord in writing of any mechanical failure, need for repair or replacement as per the Community Rules and Regulations.

M. No charcoal / gas grill or any other open flame device is permitted within 10 feet of any building. Ohio Fire Code prohibits residents from operating a charcoal, gas grill, or any other open flame device within 10 feet of any combustible building, overhang, patio fence, railings, or the deck above your own deck or patio. Electric and/or wood burning smokers are not permitted. Electric grills are acceptable. Do not store any propane fuel devices inside a dwelling. Violation of this section may cause the Fire Department to fine a resident up to \$1,000 per day until the violation is corrected. Landlord may also declare such violation a breach of lease and pursue all remedies, including eviction.

N. Tenant expressly agrees and understands that it shall be a material violation of this lease agreement if Tenant or anyone living at the premise that is the subject of this agreement is a registered sex offender at any time during Tenant's tenancy. In the event that Tenant or anyone living at the premises becomes a registered sex offender, Tenant and all other occupants will be required to vacate the premises immediately or be subject to eviction.

O. Upon lease expiration, the resident(s) will be provided a list of pre-approved cleaning companies which can be used to have the apartment cleaned. By using one of our pre-approved cleaning companies, management will not withhold any of the resident(s) security deposit with regards to cleaning the unit. Management does reserve the right to deduct cleaning fees for those items in the absence of a receipt for cleaning at the time of move out.

P. Air conditioners within window openings are prohibited.

Q. Pay landlord for all tenant related damages that occur on the property. Reimbursement to landlord is due within the very same month that the resident is billed from the landlord.

R. Light bulb replacement is the responsibility of the lease holders.

S. Smoke detector battery replacement is the responsibility of the lease holders.

T. Smoking is prohibited within the apartment/townhome/condo, common areas such as our club house, gym, and pool area.

U. Not change any door lock.

V. Not paint, wallpaper, or alter any portion of the apartment/townhome, and condo.

W. Successfully complete a full criminal and credit check, issued by the Landlord, for each adult, 18 years old or older, that reside within the apartment/townhome/condo.

X. Not block access to the hot water tank nor furnace.

Y. Bring in the recycle bin from them front door each and every Friday by midnight eastern time.

2.2 LANDLORD'S DUTIES

The Landlord shall:

A. Comply with the requirements of all applicable building, housing, health and safety codes that materially affect health/safety;

B. Make all repairs and do whatever is reasonably necessary to put and keep the Premises in a fit and habitable condition;

C. Keep all common areas of the Premises in a safe and sanitary condition;

D. Maintain in good and safe working order and condition all electrical, plumbing, sanitary, heating, ventilating and air-conditioning fixtures and appliances, supplied, or required to be supplied by the Landlord;

E. Provide and maintain appropriate receptacles for the removal of ashes, garbage, rubbish and other waste incidental to the occupancy of the dwelling unit and arrange for their removal;

F. Supply running water, reasonable amounts of hot water and reasonable amounts of heat at all times, except where the building that includes the Premises is not required by law to be equipped for that purpose, or the Premises is so constructed that the heat or the hot water

is generated by an installation within the exclusive control of the tenant and supplied by a direct utility connection;

G. Except in the case of emergency, or if it is impractical to do so, give the Tenant at least twenty-four (24) hours notice of his intent to enter and enter only at reasonable times;

H. Not abuse the right of access as described in this Lease;

I. Furnish and repair smoke detectors as required by law. (See Rules & Regulations)

2.3 WHEN THE LANDLORD MAY ENTER

The Landlord or the Landlord's representatives may peacefully enter the Premises during reasonable times for the purposes listed below, provided the Tenant or the Tenant's guests are present. If no one is in the Premises, and request has been made for repair and/or entry by the Tenant, the Landlord, or the Landlord's agents may enter peacefully and at reasonable times by duplicate or master key. If the Landlord requests entry, a written notice shall be given to the Tenant twenty-four (24) hours prior to entry. The Landlord reserves the right to enter the Premises without notice in case of emergency. The Landlord reserves the right to enter by other means if locks have been changed in violation of the Lease.

Such entry may be for: repairs, estimating repair or refurbishing costs; pest control; preventive maintenance; filter changes; testing or replacing smoke detectors; retrieving unreturned tools or appliances; preventing waste of utilities; delivering, installing, reconnecting, or replacing appliances, furniture, equipment, security devices or alarm systems; removing or re-keying unauthorized security devices or unauthorized alarm systems; removing health or safety hazards (including hazardous materials); inspections when imminent danger to person or property is reasonably suspected; entry by a law enforcement officer with search warrant or arrest warrant; showing apartment to prospective tenants (after vacating notice has been given); or insurance agents; or other valid business purposes.

2.4 NON-LIABILITY

The Tenant acknowledges that any security measures provided by the Landlord shall not be treated by the Tenant as a guarantee against crime or a reduction in the risk of crime. The Landlord shall not be liable to the Tenant, the Tenant's guests, or occupants for injury, damage, or loss to person or property caused by criminal conduct of other persons, including theft, burglary, assault, vandalism, or other crimes. The Landlord shall not be liable to the Tenant, guest or occupant for personal injury or damage or loss of personal property from fire, flood, water leaks, rain, hail, ice, snow, smoke, lightning, wind, explosions, and interruption of utilities unless caused by the Landlord's negligence. The Landlord has no duty to remove ice, sleet, or snow; but the Landlord may do so in whole or in part, with or without notice. If the Landlord's employees are requested to render services not contemplated in the Lease, the Tenant shall hold the Landlord harmless from all liability for same.

2.5 LEASE COMPLIANCE

The Landlord always has the right to require compliance with all covenants, terms, and conditions of the Lease, notwithstanding any conduct or custom on the Landlord's or the Tenant's part in refraining from so doing at any time. Waiver at any time of any breach or condition of the Lease shall not constitute or become a waiver of any subsequent breach or change any condition of the Lease. The Rules and Regulations are an attachment to the Lease and become a part of the Lease. The Rules were designed with all the Tenant's safety and comfort in mind. Rules and Regulations may be modified at any time by Landlord. Please read the Rules and Regulations. Violation of these Rules is a breach of your Lease.

2.6 DEFAULT BY THE TENANT

In the event the Tenant is in default of any of the terms or obligations of the Lease, violates and/ or fails to comply with any of the covenants, terms, or conditions of the Lease, or any community policies/ Rules and Regulations herein or hereafter adopted by the Landlord, said default shall constitute grounds for termination of the tenancy and/or eviction by the Landlord. Tenant is liable for all court costs and sheriff costs necessary to bring an eviction action because of Tenant's default. It is expressly understood and agreed that the Tenant shall be and remain liable for any deficiency in rent until the Lease expires or until such time as in the interim, the Premises are reoccupied by another acceptable tenant. The Tenant shall also be and remain liable for any expense incidental to re-letting of the Premises after Tenant's breach, including but not limited to cleaning costs beyond normal wear and tear, trash removal, storage fees, painting costs, utilities, service fees, or any other damages and costs which the Landlord has sustained by virtue of the Tenant's use and occupancy of the Premises or default under the Lease.

Default by the Tenant: Providing any false information on the rental application shall also constitute default under the terms of this lease agreement and, in such event, Landlord by terminate the tenancy and evict the Tenant at the Landlord's sole and absolute discretion.

Without limiting any of the foregoing, Landlord may commence an eviction action for possession of the Premises if:

1. Tenant is in default in the payment of rent and or utilities.
2. Tenant violates and/ or fails to comply with any of the covenants, terms, or conditions of the Lease, or any community policies/ Rules and Regulations herein or hereafter adopted by the Landlord.
3. The violation of applicable building, housing, health, or safety code that Tenant complained of was primarily caused by any act or lack

of reasonable care by Tenant, or by any other person in Tenant's household, or by anyone on the premises with the consent of Tenant;

4. Compliance with the applicable building, housing, health, or safety code would require alteration, remodeling, or demolition of the premises which would effectively deprive Tenant of the use of the dwelling unit;
5. Tenant is holding over Tenant's term. This includes Tenant keeping possession of the apartment beyond the written and agreed upon move out date, even in instances that the move out date be prior to the lease expiration date.
6. If the Premises are located within one thousand feet of any school premises or preschool or child day-care center premises, and both of the following apply regarding the tenant or other occupant who resides in or occupies the premises:
 1. Tenant's or other occupant's name appears on the state registry of sex offenders and child-victim offenders maintained under section 2950.13 of the Revised Code.
 2. The state registry of sex offenders and child-victim offenders indicates that Tenant or other occupant was convicted of or pleaded guilty to a sexually oriented offense or a child-victim oriented offense in a criminal prosecution and was not sentenced to a serious youthful offender dispositional sentence for that offense.
7. Landlord has actual knowledge of or has reasonable cause to believe that Tenant, any person in Tenant's household, or any person on the premises with the consent of Tenant previously has or presently is engaged in a violation as described in division (A)(6)(a)(i) of section 1923.02 (relating to controlled substances) of the Revised Code, whether or not the tenant or other person has been charged with, has pleaded guilty to or been convicted of, or has been determined to be a delinquent child for an act that, if committed by an adult, would be a violation as described in that division.

2.7 PROHIBITED CONDUCT

Tenant and Tenant's occupants or guests may not engage in the following activities: unlawful activity, behaving in a loud or obnoxious manner; disturbing or threatening the rights, comfort, health, safety, or convenience of others (including our agents and employees) in or near the apartment community; disrupting our business operation; manufacturing, delivering, possessing any illegal drug or narcotic, or drug paraphernalia as defined by law. Tenant may not possess a weapon prohibited by state law; discharge a firearm in or near the apartment community; display or possess a gun, knife, or other weapon in the common areas in any way that may alarm others; store any hazardous materials in or on the property; tamper with utilities or telecommunications; or injure our reputation by making bad faith allegations against us to others.

2.8 ENTIRE AGREEMENT

The Lease and attached Addenda listed in Section 2.10 are the entire agreement between the Landlord and the Tenant. No representations oral or written, not contained herein or attached hereto, shall bind either party. The Landlord's agents (including management personnel and other employees or agents) do not have authority to waive, amend or terminate the Lease or any part of it and do not have the authority to make promises, representations or agreements which impose duties or obligation on the Landlord unless done in writing.

2.9 SEVERABILITY

If any portion of the Lease is found to be void, unenforceable, or against public policy, the remaining portions of the Lease shall not be affected.

2.10 PROCESSING FEE

Tenant acknowledges and agrees that Landlord has or will incur administrative costs associated with the preparing, screening, processing, marketing, and holding Tenant's residence off the market during the lease up process. Tenant hereby agrees to pay a \$350 fee to Landlord. Tenant agrees that \$50 of this payment will be an application processing fee that is paid at the time of application. Applicant hereby tenders a Hold Deposit in the amount of \$300 in consideration for Owner/Agent not leasing the property to any other Applicant until such time as Owner/Agent approves or refuses to approve Applicant as a Tenant. If approved, Applicant shall sign a lease agreement to bind the property within (1) day with Owner/Agent for the property. This Hold Deposit shall be credited toward the applicant's 1st month's rent in the lease agreement if Owner/Agent approves Applicant as a Tenant or shall be returned if Owner/Agent does not approve Applicant as a Tenant. Owner/Agent shall approve or refuse to approve Applicant as a Tenant within seven (7) days from the date of this Hold Deposit payment.

Owner/Agent expressly reserves the right to refuse to enter into a lease agreement and terminate this Agreement to Hold Property if Owner/Agent does not approve Applicant as a Tenant/Buyer. If Applicant fails to sign a lease agreement with Owner/Agent within the time specified above after receiving notice that Owner/Agent approves Applicant, Owner/Agent may retain the entire Hold Deposit as consideration for Owner's/Agent's forbearance in leasing the property to any other Applicant as set forth and shall have no further obligation to Applicant. If any legal action or proceeding is brought by either party to enforce any part of this Hold Deposit, the prevailing party will recover, in addition to all other relief, reasonable attorneys' fees and costs. Landlord reserves the right to charge Tenant a security deposit as part of Tenant's lease with Landlord in accordance with Landlord's tenant selection policy.

2.11 ADDENDA

The following addenda and other provisions attached are a part of the Lease. Such Addenda shall be considered incorporated within any subsequent renewal lease or document. Addenda may include:

Community Policies & Procedures

Smoke Free Addendum

Security Deposit Waiver

Tenant Legal Liability 20K (if applicable)

Pet Addendum (if applicable)

Rental Concession (if applicable)

Parking Addendum (if applicable)

Key Fob Addendum (if applicable)

Garage/Storage Unit Lease (if applicable)

Guaranty of Lease (if applicable)

2.12 CAUTION TO ALL PARTIES

THE LEASE, WHEN SIGNED BY ALL PARTIES, IS A BINDING LEGAL OBLIGATION. DO NOT SIGN WITHOUT FULLY UNDERSTANDING IT. CONSULT AN ATTORNEY IF YOU HAVE ANY QUESTIONS.

The said Landlord and Tenant have executed the Lease in duplicate on the day and year first written above. Tenant acknowledges receiving a copy of the executed lease.

PM Services 09/30/2023

The Residences at Rocky Ridge LLC

Elsa Woldeyesus

By initialing below, you acknowledge and agree to the terms in Section 2.

X *EW*
Elsa Woldeyesus

3. COMMUNITIES POLICIES AND PROCEDURES RULES AND REGULATIONS

3.1 GENERAL

Please read these Rules and Regulations carefully. These Rules were designed with the Resident's safety and comfort in mind and are a legally enforceable part of your lease agreement. We will be happy to answer questions during regular office hours. Please take note that

The Residences at Rocky Ridge LLC. specifically reserves the right to correct any errors or omissions contained within this agreement throughout the duration of the parties' landlord and tenant relationship.

3.2 RENT

All rent is due and payable on the first (1st) day of each month. Late fees and NSF fees will be strictly enforced pursuant to the Lease.

3.3 PARKING

There is a limited amount of parking spaces available. Residents must park in designated areas only. All motorcycles must use plywood to protect asphalt. Parking is not permitted on grass, along roadways, in fire lanes or any other area not designated. All signs posted with parking restrictions must be followed. If your community requires parking permits, Resident agrees to follow all restrictions. Parking is reserved for Residents. Parking is strictly limited to private passenger vehicles and residents shall not store any vehicle, boat or trailer, or other property on said parking areas without written consent of the management. Car repairs or washing of vehicles are not permitted anywhere on the property.

No unlicensed, immobile, or inoperable vehicles are to be parked in the community. Vehicles on the property that do not have current tags/license visibly displayed on their vehicle or are immobile or inoperable will be towed with or without notice.

No mini-bikes, trail bikes, motor scooters, or go-carts shall be operated anywhere in the community. Motorcycles must be properly parked in parking areas only with use of plywood to protect the asphalt.

Resident shall not block ingress and egress of another vehicle, park in designated "No parking" areas, park in front of or beside yellow marked curbs, on lawn or sidewalks, block trash dumpsters, across parking lines, or block garages and/or carports.

Resident shall not park any vehicle on the property after termination of the lease agreement, eviction, or abandonment.

Resident understands that Parking Rules and Regulations are necessary for the peaceful enjoyment of the premises for all residents and hereby grants landlord the undisputed right, in landlord's reasonable judgment, to remove and /or tow any vehicle for violation of these parking restrictions. Any vehicle which landlord deems necessary to remove and/or tow will be at the cost of the owner of the vehicle with or without notice. Resident agrees to release landlord of any liability for the removal and/or towing, of a vehicle in violation of these restrictions.

3.4 SERVICE

Our apartments have been designed to be as trouble free as possible, however, if any maintenance is required, please place your service request online. Only online service requests will be performed. Your request for service will be considered permission to enter the apartment unless you specifically state in writing otherwise. Emergencies are to be immediately reported. Any damage to the apartment due to your neglect to notify us and any costs will be charged to you. Our 24-hour answering service is available after hours to handle emergencies and can be reached by calling (614) 855-7675.

Emergencies are as follows, but not limited to: no heat (when outside temperature is below 55 degrees Fahrenheit), no air conditioning (when the temperature is 76 degrees Fahrenheit or greater in the apartment home), no hot water, broken pipes and/or running water, securing door and/or window, fire damage, clogged toilet, and clogged tub. No air conditioning is not considered an emergency maintenance request when the temperature is below 76 degrees unless we have a medical note on file from a licensed physician.

Maintenance required as a direct result of a resident's negligence will be billed directly to you and is to be paid within the month the work is completed. As a resident, you are legally responsible to pay for any damage to the apartment, equipment and other facilities caused by you, your occupants, your guests, and agents. For example, foreign objects in disposal or drain lines that require service to correct will be charged to you.

3.5 LOCK OUTS

Landlord does provide an after-hour's & holiday lockout service for a \$195 service fee. Lockouts occurring during normal business hours, Monday thru Friday, 9AM though 5PM eastern time, will carry a service fee of \$125.

3.6 INSURANCE

Only your own personal Resident Homeowners Policy will prevent you from serious loss. The Owner/Manager is not liable for any personal losses incurred in your apartment or injuries, in and about your apartment, to you, your visitors, guests, or agents. You are required to obtain Property Damage Liability Waiver insurance coverage directly from **The Residences at Rocky Ridge LLC**. It is up to the lease holders to determine if Renters Insurance coverage is in their best interests.

3.7 TRASH

We ask your cooperation when it comes to placing trash in the dumpsters/compactors at your community. Please see that all trash is bagged and tied when possible so that it does not blow about the community. We are responsible for standard trash pickup only. It is the resident's responsibility to dispose of all bulk items, including, but not limited to: furniture, appliances, mattresses and box springs. No trash is to be stored outside of your apartment/townhome/condo home. This includes cigarette butts. All trash and debris must be disposed inside the dumpster/compactor. Do not place trash and/or other items around the dumpster. A violation of the trash Rules & Regulations may result in a fine of \$50.00 per item.

3.8 ALTERATIONS

We ask that you do not make any material alterations or additions in or to your apartment, change any part thereof, or drive any nails or screws into the woodwork, cupboards, cabinets, or trim. A reasonable number of small nail holes for picture hanging are permitted in the drywall. Mounting a television is allowed, however holes must be filled upon move out. Residents are not allowed to paint the walls in their apartment. It is the Resident's responsibility to restore their apartment to its original condition. Residents are not permitted to change their front door lock. Any costs incurred by management to return the apartment to its original condition will be passed on as a charge to the Resident.

3.9 COMMUNITY APPEARANCE

As your management team, we will maintain the community for everyone. Please help us by paying close attention to the following:

- a. Please do not obstruct the walks, stairs, halls, or parking area by leaving items such as bicycles, toys or other items that may interfere with the full use by all our Residents.
- b. Patio and balcony areas should be kept neat, so they do not detract from the general appearance of the community. Only outdoor patio furniture is permitted on private patios. Hammocks are prohibited. Common areas may not be used to store personal items.
- c. Blankets, sheets, paper, etc. do not qualify as proper window attire. Window coverings or drapes must be hung on the interior side of the furnished blinds. All mini blinds provided must remain up at all times. If you damage the mini blinds provided by the landlord, landlord will replace at the resident's cost.
- d. No items are permitted to be stored outside your home. All items must be stored inside your home. Do not store items around the air conditioning unit as this may cause the unit to malfunction. Should damage occur to unit, resident will be subject to charges for repair. Any items being stored outside of your apartment homes will result in a \$50.00 fine per item. Management will not store said items, they will be disposed of.
- e. No satellite dishes, signs, awnings, screens, antennas, advertisements, or notices shall be placed or affixed upon any part of the outside of the building, nor shall any articles be suspended outside the building or placed on the windowsills thereof, without the written consent of the landlord. Resident is not permitted to erect fences of any kind around the property. Items found will be removed at the resident's expense.
- f. Bird feeders are not permitted.

3.10 COMMUNITY CONDUCT

Please conduct your activities in and around your apartment consistent with the way you would want others to act and observe quiet hours from 10PM-7AM. Please keep all stereos, radios and TVs turned down to a minimum as sound carries through the building. Loud noise and late parties are very disturbing to other Residents. Please be considerate in this matter as you would want them to be considerate towards you. After office hours, should an objectionable conduct situation arise, please call the police department, and provide management with the report. We cannot solve noise disputes after the fact, it is best to handle the problem while it is in progress. Any Resident with a concern or complaint must deliver it to the office in writing as soon as possible. This will enable us to handle all complaints as efficiently as possible. Noise complaints received may result in a \$75.00 fine based on frequency and/or severity. No smoking is allowed in interior common hallways, elevators, or other amenity spaces.

3.11 SOLICITORS

Door-to-door soliciting is not permitted without written approval of Management. Notify us should solicitors appear at your door.

3.12 SAFETY AND COMMON SENSE

No Resident shall do or permit anything to be done in said premises, or keep anything therein which will in any manner increase the landlord's rate of insurance on the Premises, or obstruct or interfere with the rights of the other Residents, or do or permit anything to be done which shall conflict with the laws, regulations, rules and ordinances of the Fire Department, the Department of Building, the Department of Health, or any other legal authority.

No water beds or large aquariums over 40 gallons shall be used within the leased premises without first obtaining consent in writing from

the Management.

Do not throw away heavy refuse in the garbage disposal. When using the disposal, ALWAYS turn on the cold water first; then turn on the switch. Never use without having the cold water running. Do not throw celery, citrus fruit skins, corn cobs, watermelons, coffee grinds or chemicals such as Drano into the disposal. If the disposal becomes broken and the plumber finds that you did not follow these instructions, the cost of repair will be charged to you. This also pertains to your sinks and toilet(s). Do not throw any heavy bulky items into the toilet bowl, such as diapers, etc.

No hose shall be connected to water pipes or spouts and used for outdoor sprinkling, showering, pools, or washing of cars. Exterior outlets, excluding those located directly on the Resident's patio/balcony, are not to be used. Any Resident in violation of using the faucets or outlets will be subject to a \$75.00 fine.

Landlord reserves the right to prescribe the weight and proper position of heavy articles, and the manner of placing them in position. Resident shall be liable for all damages to the building caused by taking in, moving, or removing the same.

Resident shall not use any electrical appliance that will interfere with the radio or television reception of other Residents.

No electric or gas space heaters or fireplaces may be used on the premises unless specifically authorized by management.

Dial 911 or immediately call local medical emergency, fire, or police personnel in case of accident, fire, smoke or suspected criminal activity or other emergency involving imminent harm. You should then contact the Landlord. We're not responsible for obtaining criminal-history checks on any residents, occupants, guests, or contractors in the apartment community. If you or any occupant or guests are affected by a crime, you must make a written report to our representative and to the appropriate local law-enforcement agency. You must also furnish us with the law-enforcement agency's incident report number upon request.

Resident agrees to pay for all utilities, related deposits, and any charges, fees, or services on such utilities. You must not allow utilities to be disconnected—including disconnection for not paying your bills—until the lease term or renewal period ends. Utilities shall be used only for normal household purposes and must not be wasted. Resident agrees that if the outside temperature is below 32 degrees, the thermostat inside the apartment home must remain set at a minimum of 65 degrees to prevent frozen pipes. Failure to comply could result in frozen and/or busted pipes, resulting in a water leak. Should this occur and your temperature be set below 65 degrees, Resident will incur all charges for repairs. Resident consents to the final payment for any utility usage to be deducted from Resident's security deposit. You will be charged for Resident's apportioned share of common area usage within the community.

3.13 GUEST POLICY

You and all guests and occupants must comply with any written apartment rules and community policies, including instructions for care of our property. Our rules are considered part of the lease agreement. We may exclude from the apartment community guests or others who, in our judgment, have been violating the law, violating the lease agreement or any apartment rules, or disturbing other Residents, neighbors, visitors, or landlord's representatives. We may also exclude from any outside area or common area a person who refuses to show photo identification or refuses to identify himself or herself as a Resident, occupant, or guest of a specific Resident.

It is the policy of **The Residences at Rocky Ridge LLC** to allow guests and visitors to the property, under the guidelines of the visitation Policy. Any person not on the Lease and occupying or staying on the premises of the Resident is considered to be a guest. Overnight guests will be limited to three (3) day stays. If the overnight guest is under the age of 18 without an accompanying adult, visitation is limited to two (2) weeks. Landlord reserves the right to limit the number of overnight guests per apartment. All guests are required to park in auxiliary parking areas designated by the Landlord. If a guest, visitor, nonresident, or uninvited individual displays any of the following behaviors or activities, said person will be barred from the property and possibly subjected to criminal prosecution. A resident, who willingly allows a banned individual to return to their apartment home, will face possible fines and eviction proceedings.

Any visitor, guest, non-resident, or uninvited person will be placed on the "No-Trespassing List" for any of the following:

- Solicitation
- Disturbing or repeatedly disturbing a resident's right of peaceful enjoyment of the premises
- Engaging in criminal or illegal activity on the premises
- Exhibiting threatening behavior/verbal abuse to any individual on the premises
- Loitering on the premises
- Demonstrating disorderly and disturbing conduct on the premises

3.14 COMMUNITY, FACILITIES AND AMENITIES (IF APPLICABLE)

In communities with lakes, ponds or streams, the use of good judgment and commons sense is imperative. Fishing, swimming, boating, rafting, or any other recreational sports are prohibited. An adult resident/leaseholder when in the area of the lake or pond must accompany individuals under the age of sixteen (16) years. Out of respect for the privacy of those Residents living near these areas, please limit your activities to common areas away from doors and windows. Skateboarding will not be permitted in the community. Toys, bicycles, carts, wagons, big wheels may not clutter sidewalks, streets, or lawns. Such objects must be stored inside garages or apartments, not in common

areas, hallways, patios or outside. Residents may not operate businesses out of their apartments. Use of all recreational facilities is expressly prohibited outside of designated hours. Residents are expected to supervise and oversee all outside activities of their occupants, guests, and invitees. Resident's, occupants, guests, and invitees are not permitted to conduct outdoor activities or play in the parking areas.

3.15 POOL, FITNESS CENTER & OTHER AMENITY RULES (IF APPLICABLE)

- Swimming pool hours are 10 am until 9 pm; Fitness center hours open 24 hours M-Sun. Management reserves the right to adjust amenity open hours.
- The swimming pool season will be between Memorial Day and Labor Day.
- Amenities are intended for resident use only.
- Amenities pass must be present when at fitness center and swimming pool.
- Loss of amenities pass will result in a \$100.00 charge for replacement.
- Limit of 2 non-lease holder guests. Lease holders must be present at pool with guests and anyone under 16 years of age.
- No food, alcohol, or smoking is allowed at pool or fitness center. NO GLASS CONTAINERS are to be brought into area.
- Running, horseplay, fighting, dangerous conduct, disturbing music or behavior will not be tolerated. Ball or Frisbee playing is not allowed. Diving sticks and rings are allowed. Floatation devices are prohibited.
- Pets may not be brought into any part of the pool or fitness center at any time unless approved by management.
- Residents will be held responsible, including charges, for any damage to pool, fitness area, or incorporated areas.
- Appropriate attire for swimming pool is required. Thong swimsuits, risqué outfits, everyday apparel, or other materials which may unravel and clog filters will not be allowed.
- Any additional amenities in the swimming pool area (i.e., grill, cornhole, firepit, etc.) will not be accessible to residents when the pool is closed for maintenance or is closed for the season.
- Pool and fitness center rules will be posted and enforced. Unwillingness to comply may result in being banned.

I have read and agree to follow all rules set forth in the community policies. I will pay a fee of \$100.00 if the amenities pass(s) I am responsible for are lost, stolen, or not returned upon my move out.

Additional Amenities Rules:

1. Individuals under sixteen (16) years of age must be accompanied by an adult Resident at all times while in the pool area. Individuals under sixteen (16) years of age are not permitted to use the hot tub/spa.
2. All Residents, guests and invitees who use the pool and/or facilities do so at their own risk. Persons using any amenity (i.e., grill, pool, fitness center, firepit, etc.) assume all responsibility for accident, injury and all risk of damages that may occur while using the amenity.
3. A parent or legal guardian (who is a Resident of the community) must accompany persons under the age of sixteen (16) years of age in the fitness center.
4. Pool gates may not be propped open or otherwise rendered inoperable even if temporarily.
5. The pool may be used only between the hours posted.
6. Residents will place their own towels over pool furniture when using suntan oil or other lotions.
7. Owner is not responsible for articles which are lost, damaged or stolen.
8. SAFETY EQUIPMENT is not to be used except in case of an emergency. This includes life rings and back boards.
9. Resident should feel free to ask others to cease any violation of these rules. Resident is requested to immediately notify management of violations of these rules by others.
10. Skateboards, bicycles, tricycles, etc. are not allowed into the pool area.
11. Place all refuse in trash containers provided.
12. No removal of pool furniture from the pool area.
13. Pool rules are posted during open season. All Residents and guests of Residents must abide by the pool rules. Pools may not be reserved for private parties.

14. Violation by Resident or his/her guests could result in loss of use and privilege to pool and fitness center, and/or eviction.

Additional Fitness Center Rules:

The Resident(s) assume all responsibility for, and all risk of damage or injury that may occur to the Resident(s) and/or guest(s) while using any of the equipment in the fitness center.

*Resident(s) shall carefully inspect each piece of equipment prior to Resident(s) and/or Guest(s) use and shall refrain from using any equipment which Resident(s) believes is functioning improperly or is damaged or dangerous.

*Resident(s) shall report to Management immediately any equipment that is not functioning properly, is damaged or appears dangerous as well as any other person's use that appears to be dangerous or in violation of Management Rules and Policies.

*Resident(s) shall consult a physician before using any equipment in the fitness center. Resident(s) and/or Guest(s) will refrain from using such equipment unless such use or participation has been approved by the Resident(s) and/or Guest(s) physician.

The Fitness Center and pool facilities are provided for the Resident's enjoyment and use. The right to such enjoyment and use, however, is a license only and is subject to Resident(s) obeying the Management's Rules and Policies pertaining to the Fitness Center and pool. Such license may be revoked, modified, or limited at any time by Management without prior notice to the Resident(s). Such license shall be automatically revoked upon the expiration or termination of the Resident's lease or upon a default by Resident(s) under such lease. Any breach of the Addendum or the rules promulgated hereunder shall be a material violation of Resident(s) lease. Resident(s) shall comply with the above Rules and Policies (and any Management posted modifications or additions thereto).

X EW
Elsa Woldeyesus

3.16 PETS

If you have not signed the appropriate Pet Addendum, your rental agreement is a non-pet lease. Should a pet be found on the premises, you will be subject to removal of the pet and/or eviction. If landlord discovers that Resident has harbored a pet in violation of the pet policies and failed to disclose and/or execute a proper Pet Addendum, all fees associated with the keeping of the pet will be retroactive to the start/commencement of the Lease Agreement.

3.17 MOLD INFORMATION & PREVENTION

I. ABOUT MOLD. Mold is found virtually everywhere in our environment-both indoors and outdoors and in both new and old structures. Molds are naturally occurring microscopic organisms which reproduce by spores and have existed practically from the beginning of time. All of us have lived with mold spores all our lives. Without molds we would all be struggling with large amounts of dead organic matter.

Mold breaks down organic matter in the environment and uses the end product for its food. Mold spores (like plant pollen) spread through the air and are commonly transported by shoes, clothing, and other materials. When excess moisture is present inside a dwelling, mold can grow. There is conflicting scientific evidence as to what constitutes a sufficient accumulation of mold which could lead to adverse health effects. Nonetheless, appropriate precautions need to be taken.

II. PREVENTING MOLD BEGINS WITH YOU. In order to minimize the potential for mold growth in your dwelling, you must do the following:

- Keep your dwelling clean – particularly the kitchen, the bathroom(s), carpets, and floors. Regular vacuuming, mopping, and using a household cleaner to clean hard surfaces is important to remove the household debris and debris that harbor mold or food for mold. Immediately throw away moldy food.
- Remove visible moisture accumulation on windows, walls, ceilings, floors, and other surfaces as soon as reasonably possible. Look for leaks in washing machine hoses and discharge lines – especially if the leak is large enough for water to infiltrate nearby walls. Turn on any exhaust fans in the bathroom and kitchen before you start showering or cooking with open pots. When showering, be sure to keep the shower curtain inside the tub or fully close the shower doors. Also, the experts recommend that after taking a shower or bath, you; (1) wipe moisture off the walls, the shower doors, the bathtub, and the bathroom floor; (2) leave the bathroom door open until all moisture on the mirrors and bathroom walls and tile surfaces has dissipated; and (3) hang up your towels and bathmats so they will completely dry out.
- Promptly notify us in writing about any air conditioning or heating system problems you discover. Follow our rules, if any, regarding replacement of air filters. Also, it is recommended that you periodically open windows and doors on days when the weather is dry (i.e., humidity is below 50%) to help humid areas of your dwelling dry out.
- Promptly notify us in writing about any signs of water leaks, water infiltration or mold. We will respond in accordance with state law

and the lease contract to repair or remedy the situation, as necessary.

- If humidity levels in your apartment exceed 65%, you will be required to purchase and run a dehumidifier, at your own expense, to reduce the risk of mold growth.

III. IN ORDER TO AVOID MOLD GROWTH it is important to prevent excessive moisture buildup in your dwelling. Failure to promptly pay attention to excessive moisture buildup can encourage mold growth. Failure to promptly pay attention to leaks and moisture that might accumulate on dwelling surfaces or that might get inside walls or ceilings can encourage mold growth. Prolonged moisture can result from a wide variety of sources, such as:

- Rainwater leaking from roofs, windows, doors and outside walls, as well as flood waters rising above floor level;
- Overflows from showers, bathtubs, toilets, lavatories, sinks, washing machines, dehumidifiers, refrigerators or A/C drip pans or clogged up A/C condensation lines;
- Leaks from plumbing lines or fixtures, and leaks into walls from bad or missing grouting/caulking around showers, tubs or sinks;
- Washing machine hose leaks, plant watering overflows, pet urine, cooking spills, beverage spills and steam from excessive open-pot cooking;
- Leaks from clothes dryer discharge vents (which can put a lot of moisture into the air); and
- Insufficient drying of carpets, carpet pads, shower walls and bathroom floors.

IV. IF SMALL AREAS OF MOLD HAVE ALREADY OCCURRED ON NON-POROUS SURFACES, such as ceramic tile, Formica, vinyl flooring, metal, wood or plastics), the Federal Environmental Protection Agency (EPA) recommends that you first clean the areas with soap (or detergent) and water, let the surface dry, and then within 24 hours, apply a pre-mixed, spray-on-type household biocide such as Lysol Disinfectant (original pine-scented), Tilex Mildew Remover or Clorox Cleanup. (Note: Only a few of the common household cleaners will kill mold). Tilex and Clorox contain bleach which can discolor or stain. Be sure to follow the instructions on the container. Applying biocides without first cleaning away the dirt and oils from the surface is like painting over old paint without first cleaning and preparing the surface.

Always clean and apply a biocide to an area 5 or 6 times larger than any visible mold because mold may be adjacent in quantities not yet visible to the naked eye. A vacuum cleaner with a high-efficiency particulate air (HEPA) filter can be used to help remove non-visible mold products from porous items, such as fibers in sofas, chairs, rugs, and carpets. Machine washing or dry cleaning will remove mold spores from clothes.

V. DO NOT CLEAN OR APPLY BIOCIDES TO: (1) visible mold on porous surfaces such as sheetrock walls or ceilings, or (2) large areas of visible mold on non-porous surfaces. Instead, notify us in writing, and we will take appropriate action.

VI. COMPLIANCE. Complying with this section will help prevent mold growth in your dwelling, and both you and we will be able to respond correctly if problems develop that could lead to mold growth. If you have any questions regarding this section, please contact us at the management office or at the phone number shown on your Lease Contract. If you fail to comply with this section, you can be held responsible for property damage to the dwelling and any health problems that may result. We can't fix problems in your dwelling unless we know about them.

3.18 ETHNIC INTIMIDATION

The Residences at Rocky Ridge LLC will not tolerate "hate crimes" or "ethnic intimidation" as defined by federal, state and local law: Under federal law, a hate crime is defined as a crime that manifests evidence of prejudice based on race, religion, disability, sexual orientation, or ethnicity. Federal Hate Crime Statistics Act 28 U.S.C. Section 534. Ohio Revised Code Section 2927.12 and/or Columbus City Code Section 2331.08. The undersigned resident(s) acknowledge that they have read this section and that they will conduct themselves and require other persons on the premises with his/her consent to conduct themselves in a manner that will not disturb his/her neighbor's peaceful enjoyment of the premises and or violate any federal, state or local hate or ethnic intimidation laws.

3.19 SMOKE DETECTORS

I. The resident acknowledges that a UL listed smoke detector has been installed in their apartment. Residents will test the smoke detector and determine that it is operating upon move in. Resident agrees to inspect and test the smoke detector once each month. Resident shall not tamper with, remove, or replace any parts or equipment off the smoke detector except "dead" or missing batteries, if applicable. The Resident will notify **The Residences at Rocky Ridge LLC** of an inoperative smoke detector by written notice. **The Residences at Rocky Ridge LLC** will not be responsible or liable for replacing or repairing an inoperable smoke detector until after the Resident properly delivers such written notice. **The Residences at Rocky Ridge LLC** may charge Resident a service charge if the service call results from Resident's

failure to replace dead or missing batteries if applicable, tampering or interfering with, or damages any components of the smoke detector. Resident shall be liable for immediately paying the cost of repairing any damage caused to the smoke detector by Resident's negligence or misconduct.

II. **The Residences at Rocky Ridge LLC** shall not be responsible for any injury or damage to persons or property occurring in the premises that in any manner arises from Resident's failure to test, inspect or maintain the smoke detector as provided by this section or from Resident's failure to comply with The Columbus City Code Section 4529.11; and Resident shall indemnify owner from such damage or liability.

III. Any cost of replacing the smoke detector, or its batteries if applicable after resident vacates the premises may, at the owner's option, be deducted from Resident's security deposit.

IV. IN THE CASE OF BATTERY-OPERATED SMOKE DETECTORS, THE FOLLOWING ADDITION APPLIES: Resident is responsible for replacing "dead" batteries with the battery types specified in the smoke detector instructions throughout the lease term. If the smoke detector will not operate after resident replaces the batteries, Resident will promptly notify **The Residences at Rocky Ridge LLC** by certified mail, pursuant to Columbus City Code Section 4529.11(B).

V. VIOLATION OF RULES: If any rule or provision of this Smoke Detector section is violated by Residents or Resident's guests or occupants, **The Residences at Rocky Ridge LLC**, shall have all other rights and remedies set forth in the Lease, including damages, eviction and/or attorney's fees.

VI. MULTIPLE RESIDENTS: Residents and resident's guests or occupants shall abide by all smoke detectors rules. Each resident shall be jointly and severally liable for damages in contract and negligence and all other obligations set forth herein.

3.20 SECURITY

Resident(s) hereby agrees and acknowledges that Landlord and owner have no duty to provide security services to Resident(s) or the community. Resident(s) shall look solely to the public police force for security protection. Resident(s) agrees and acknowledges that protection against criminal activity is not within the power of the Landlord or owner, even if from time-to-time Landlord or owner provides security services, those services cannot be relied upon by Resident and shall not thereafter impose a duty upon Landlord or owner to provide such services. In the event a situation should occur, this would not be cause for termination of your lease agreement. Resident(s) should take all necessary precautions to protect his/her person and personal property. Ring Doorbells or any other video monitoring device may not be installed without Landlord's written approval of the device's video monitoring area.

3.21 CONCEALED WEAPON

Unless permitted by Ohio law, the undersigned Resident(s) acknowledges that it is illegal to carry a firearm, deadly weapon, or dangerous ordinance on any common areas of the Apartment Community. Common areas include but are not limited to the Manager's office, exercise facility, pool area, walkways, hallways, and laundry rooms. This policy will be strictly enforced by the management. If a Resident is found carrying a firearm, deadly weapon or dangerous ordinance in a common area, an immediate eviction notice will be served at which time the Resident will have three (3) days to vacate the apartment unit or an eviction action will be initiated.

Subject to any provision of the Ohio Revised Code to the contrary, no Resident shall transport a firearm to their respective apartment unit unless it is unloaded and carried in a closed package, box, or case in plain sight. Any Resident who violates this section will also be subject to criminal prosecution as set forth by the Ohio Revised Code.

3.22 DRUG FREE HOUSING

I. Resident, and any other member of the resident's household, or a guest or other persons under the resident's control, shall not engage in criminal activity, including drug-related criminal activity, on or near premises. "Drug-related criminal activity", means illegal manufacture, sale, distribution, use, or possession with intent to manufacture, sell, distribute, or use of a controlled substance (as defined in section 102 of Controlled Substance Act (21 U.S.C. 802)).

a. Shall not engage in any act intended to facilitate criminal activity.

b. Will not permit the dwelling unit to be used for, or to facilitate criminal activity.

c. Shall not engage in the unlawful manufacturing, selling, using, storing, keeping, or giving of an illegal or controlled substance as defined in O.R.C. 3719.01, at any locations, whether on or near the dwelling unit premises.

d. Shall not engage in any illegal activity, including, but not limited to prostitution as defined and prohibited in O.R.C. 2907.01 and O.R.C. 2907.25, criminal gang activity as defined in O.R.C. 2923.41, menacing or aggravated menacing as prohibited in O.R.C. 2903.22 and O.R.C. 2903.21, assault as prohibited in O.R.C. 2903.13, including but not limited to the unlawful discharge of a weapon, on or near the dwelling unit premises, or any breach of the lease agreement that otherwise jeopardizes the health, safety and welfare of the landlord, his agent, or other tenant, or involving imminent or actual serious property damage, as defined and prohibited in O.R.C. 2909.06.

II. Resident, and any other member of the resident's household, or a guest or other person under the resident's control, shall not engage in any act intended to facilitate criminal activity in the community or near premises.

III. Resident, and any other member of the resident's household, or a guest or other person under the resident's control, or on the property at Resident's consent, shall not engage in acts of violence or threats of violence including, but not limited to the unlawful discharge of firearms, on or near premises.

IV. VIOLATION OF THE ABOVE PROVISIONS SHALL BE A MATERIAL VIOLATION; a single violation of any of the provisions of this section shall be deemed a serious violation and a material noncompliance with the lease. It is understood and agreed that a single violation shall be good cause for termination of the lease. Unless otherwise provided by law, proof of violation shall not require criminal conviction, but shall be by a preponderance of the evidence.

3.23 INTEGRATED PEST MANAGEMENT PLAN

Ohio Revised Code Section 5321.05 of the Landlord-Tenant Act requires, in part, all tenants to:

- (A)(1) Keep that part of the premises that he/she occupies and uses safe and sanitary;
- (A)(2) Dispose of all rubbish, garbage, and other waste in a clean, safe and sanitary manner;
- (A)(5) Comply with the requirements imposed on tenants by all applicable State and Local housing, health and safety codes;

A. Prevention

Resident acknowledges that he/she will use their best efforts and care to avoid creating any conditions which would introduce, cause, or promote the presence of bugs, vermin and/or insects in the premises or the community property. A Resident's infestation prevention responsibilities shall include, but are not limited to, the following:

- Resident acknowledges receiving a copy, and agrees to comply with, Landlord's Integrated Pest Management Plan ("IPM") concerning Bed Bugs prior to taking occupancy of the premises.
- Do not feed wildlife or stray animals anywhere on community property.
- Pet food shall be kept in a sealed container; Pets shall be regularly inspected/treated for fleas and other parasites.
- Resident shall regularly vacuum and clean premises to maintain health and safety standards.
- Resident shall not allow trash to accumulate inside or outside the premises and shall remove trash from the premises in a plastic bag and place inside the dumpster and/or trash cans and be sure that lids and doors are closed.
- Resident shall not place any furniture, clothing or any other items in the premises that were found or retrieved in or around any dumpster or other trash collection site.
- Resident remains responsible to inspect and ensure that used furniture and clothing is thoroughly inspected for bugs, vermin and/or insects prior to placing said item on the premises.
- Landlord recommends that mattresses used or stored in the premises be wrapped or sealed in a mattress cover made of vinyl, plastic or other impervious material that can be sealed.

B. Duty to Notify the Landlord

Resident shall immediately report any infestation of bugs, insects and/or other vermin to Landlord in writing. Resident understands that the cost of extermination, and possibly the invasiveness of extermination, will be significantly reduced if the problem is reported as early as possible.

C. Cooperation with Extermination and Treatment Efforts

Resident understands that the Landlord's extermination and treatment efforts may necessitate Resident vacating the premises either temporarily or permanently for an infestation to be eradicated in the premises or on the project grounds. Resident shall fully cooperate with the Landlord in preparing the premises for extermination treatments based upon the guidelines provided by Landlord's pest control professional. Failure to fully cooperate with Landlord's instructions or with the Landlord's pest control professional's instructions or failure to provide access to the premises, given reasonable advance notice to enter for extermination and/or treatments, shall constitute grounds for an eviction. If the Landlord is required to reschedule extermination and/or treatment efforts due to the actions or inactions of the Resident, then the Resident will be billed for all expenses associated with rescheduling.

D. Cost of Extermination

Landlord reserves the right to charge the cost of treatment, eradication of infestation, and cleaning of infested areas to the Resident. If the Resident vacates the leased premises and bed bug infestation is subsequently discovered, Resident will be held responsible for the full cost of treatment, eradication, and cleaning of the leased premises. If infestation spreads from the leased premises, Resident may also be held responsible for the expense of treatment of such other areas infected. If it becomes necessary for the resident to vacate the premises temporarily or permanently as part of the eradication/treatment efforts, the Landlord shall not be liable for any cost of relocation. In the event Resident refuses to pay any invoice submitted by Landlord to Resident for the cost of extermination of the infestation, this sum shall become additional rent due and payable with the next monthly rent installment. In the event any additional rent is unpaid with the next monthly rent installment, the entire rental payment may be refused as a partial rent payment. Failure to pay for the cost of extermination

will be considered non-payment of rent and will be a breach of lease and grounds for an eviction.

E. Termination of Tenancy

Landlord may terminate Residents' tenancy and Residents shall vacate the premises if any of the following apply:

1. Residents' actions or inactions contribute to or result in a pest infestation.
2. Residents' actions or inactions prevent or hinder Landlords' treatment of an infestation.
3. Landlord, in Landlords' sole discretion, or pursuant to the opinion of a licensed pest control professional, determines that the infestation in the premises and/or adjoining apartments cannot successfully or properly be treated with Residents continuing to live in the premises.
4. Noncompliance with any other terms of this Provision.

3.24 APPLIANCES

The leaseholder(s) understand and agree that the leaseholder(s) are liable for damage to the appliances that are determined by management to be above/beyond normal wear/tear. The cost of parts for repairs and/or replacement costs of appliances due to resident negligence will be billed and payment due from the resident within 14 days of repair/replacement. If payment for damage is not received within 14 days resident understands that their account will be subject to legal action which can include eviction from the premises. Management reserves the right to replace the damaged appliance with a model/style of management's choice. Below are the estimated costs associated with repairs/replacement. Be advised that this is NOT an all-inclusive list and pricing is subject to change.

Replacement cost of dishwasher: \$499

Refinish cost of glass for flat top range: \$300

Replacement cost of glass for flat top range: \$600

Replacement cost of refrigerator: \$899

Replacement cost of washer: \$675

Replacement cost of stove/oven: \$799

Replacement cost of range hood: \$175

Replacement cost of microwave: \$475

Replacement cost of dryer: \$675

3.25 SMART TECHNOLOGY DEVICES (IF APPLICABLE)

The leaseholder(s) understand and agree that the leaseholder(s) are liable for the damage of any smart technology device as determined by management to be above/beyond normal wear/tear. The cost of parts for repairs and/or replacement costs of smart technology devices due to resident negligence will be billed and payment will be due from the resident within 14 days of repair/replacement. If payment for damage is not received within 14 days, resident understands that their account will be subject to legal action which can include eviction from the premises. Management reserves the right to replace the damaged smart technology device(s) with a model/style of management's choice. Below are the estimated costs associated with repairs/replacement. Be advised that this is NOT an all-inclusive list and pricing is subject to change.

Hub Replacement: \$500

In Wall Smart Switch: \$40

Smart Tamper Resistant Duplex Receptacle: \$30

Smart Add on Switch: \$20

Smart in Wall Motion Sensing Switch: \$40

Smart Door/Window Sensor: \$30

Smart Thermostat: \$150

In Wall Smart Dimmer: \$50

Smart Entry Deadbolt: \$210

3.26 MOVE OUT PROCEDURES

Resident(s) hereby agrees and acknowledges the following requirements at time of Move-Out. Resident(s) agrees to:

- Sixty (60) days written notice must be given prior to vacating the unit before expiration of the lease or any renewal term. The notice must be written. No verbal notices accepted.
- Do not leave any trash, debris, furniture, etc., in or around your unit. You will be charged a minimum of \$50.00 for each item that is disposed of by landlord.
- All mini blinds must be in perfect condition. A minimum charge of \$75.00 per blind plus labor will be assessed if the blinds need to be replaced. Please leave ice cube trays and sink stoppers. All light bulbs must be working and in fixtures.
- Turn in all keys to the apartment on or before your scheduled move-out date. You will be charged for a full month's rent if your keys are not turned in.
- If you move out during the cold weather months, please leave the thermostat set on 60 degrees.
- Call the electric company, gas company and water company (if applicable) and ask them to "take the utility out of your name as of your move-out date". That is the scheduled date that has been given to the rental office. Your water must be paid in full to date of your move-out and a receipt provided to the rental office before any security deposit refund is released.
- In the event a resident does not fulfill the lease terms, said resident will be responsible for the prorated turn cost of that apartment, (entire refurbishing cost divided by term of lease [months] times expired term of lease equals turn cost damage). Which includes, but is not limited to: rent, paint, clean, carpet, maintenance parts/labor and advertising costs.
- Prior to your end of lease, it's the tenant's responsibility to have their entire apartment professionally deep cleaned including the carpets. (Receipt is required from our pre-approved cleaning company. We will provide you the contact information for our pre-approved cleaning company as a part of your move out instructions). This includes having our pre-approved cleaning company deep clean the kitchen appliances, kitchen cabinets, kitchen floor, kitchen countertops, bathroom(s) tub(s) and / or shower stall, bathroom toilet(s), bathroom mirror(s), bathroom floors, bathroom vanity, bathroom sinks, window blinds, and window ledges.
- All parts and labor associated with the turnover cost will be additionally charged to the vacating resident.
- All applicable taxes will be charged.

Below is a partial list of item that the resident may be charged for upon move out:

Blinds:

Size 23" to 35" \$75

Size 48" and up \$195

Vertical \$125

Doors:

Interior \$250

Bi-Fold \$275

Drywall Repair:

Smaller than 2" \$20

Larger than 2" \$70

Rehang door \$35

Key Replacement: \$50

Key Lock Change: \$125

Lighting Fixture Globes:

Small \$40

Large \$60

Fan \$50

Outlet / Light Switch Cover: \$10

Window Screen:

Replace \$50

Rescreen \$30

Garage Remote Replacement: \$50

TrashCab Recycling Bin Replacement: \$50

The standard cleaning, repair and /or replacement cost are not a complete list and are provided as examples of what you may expect. Depending on the severity of the returned conditions of the premises, charges may be in excess of examples. It is understood and agreed that any and all cost for damages, other turnover costs of labor and materials will be deducted from your security deposit or owed if the security deposit is insufficient to cover the charge. Note: Removal of wallpaper, drywall repair, carpet replacement, and appliance replacement will be based on actual cost including labor, installation, and applicable taxes.

3.27 SURVEILLANCE CAMERAS AND NON-LIABILITY.

To prevent vandalism and damage to the property, monitoring devices may have been installed in the common areas, exterior, and garage areas of the premises. The devices are used for the limited purpose of monitoring the conduct of persons who may cause such damage and destruction. The Tenant acknowledges that any security measures provided by the Landlord shall not be treated by the Tenant as a guarantee against crime or a reduction in the risk of crime. The Landlord shall not be liable to the Tenant, the Tenant's guests, or occupants for injury, damage, or loss to person or property caused by criminal conduct of other persons, including theft, burglary, assault, vandalism, or other crimes. The Landlord shall not be liable to the Tenant, the Tenant's guests, or occupant for personal injury or damage or loss of personal property from fire, flood, water leaks, rain, hail, ice, snow, smoke, lightning, wind, explosions, and interruption of utilities unless caused by the Landlord's negligence. The Landlord has no duty to remove ice, sleet, or snow; but the Landlord may do so in whole or in part, with or without notice. If the Landlord's employees are requested to render services not contemplated in the Lease, the Tenant shall hold the Landlord harmless from all liability for the same.

3.28 LOCK REPLACEMENT CHARGE

Lock replacement charge is \$125 during normal business hours, i.e., Monday through Friday 8am to 5pm eastern. Lock replacement charge is \$195 outside of normal business hours, i.e., Monday through Friday 8am to 5pm eastern.

3.29 PACKAGE RELEASE.

I/We Elsa Woldeyesus at
5724 Nineteen Rock Crossing
Westerville, OH 43081

hereby give the U.S. Postal Service, UPS, FedEx, DHL or any other delivery service permission to leave mail and oversized packages at the leasing office. I/We further release the leasing office staff and **The Residences at Rocky Ridge LLC** from any and all liability to packages delivered to the office or directly to resident's front door.

Should your community offer a package locker system, this will be the sole place that packages will be delivered on community premises. You will receive an e-mail or text notification (or both) when a package has been delivered. Packages must be picked up promptly, with seven (7) day a week, 24 hour a day accessibility. The first three (3) days of storage will be free. Days 4-7 will incur a \$2 per day fee which will be added to your account. After day seven (7) any package that has not been picked up will be returned. Should you be out of town for an extended period of time, you may log on to the resident portal at www.luxerone.com to set up a package hold.

X EW
Elsa Woldeyesus

3.30 EMERGENCY CONTACT INFORMATION

In the event of an emergency, I hereby give **The Residences at Rocky Ridge LLC** the authorization to contact the following person(s):

By initialing below, you acknowledge and agree to the terms in Section 3.

X EW
Elsa Woldeyesus

4. SMOKE-FREE LEASE ADDENDUM

4.1 SMOKEFREE BUILDING AND GROUNDS

Tenant agrees and acknowledges that the premises to be occupied by Tenant and members of Tenant's household shall be designated as a smokefree living environment. Tenant and members of Tenant's household shall not smoke anywhere in the apartment unit rented by Tenant, including any associated balconies, decks, or patios; in the common areas of the building where the Tenant's dwelling is located, including, but not limited to, community rooms, community bathrooms, lobbies, reception areas, hallways, laundry rooms, stairways, offices, and elevators; or in any of the common areas or adjoining grounds of such building or other parts of the rental community, including entryways, patios, and yards, nor shall Tenant permit any guests or visitors under the control of Tenant to do so.

4.2 TENANT TO PROMOTE SMOKEFREE POLICY AND ALERT LANDLORD OF VIOLATIONS

Tenant shall inform Tenant's guests of the smokefree policy. Further, the Tenant shall promptly give Landlord a written statement of any incident where tobacco or marijuana smoke, or vapor from an electronic cigarette, is migrating into the Tenant's apartment unit from sources outside the Tenant's unit.

4.3 OTHER TENANTS ARE THIRD-PARTY BENEFICIARIES OF TENANT'S AGREEMENT

Tenant agrees that the other Tenants in the building are third-party beneficiaries of Tenant's smokefree Lease Addendum with Landlord. A Tenant may bring legal action against another Tenant related to this smokefree Lease Addendum, but a Tenant shall not have the right to evict another Tenant. Any legal action between Tenants related to this smokefree Lease Addendum shall not create a presumption that the Landlord breached the Lease Addendum.

4.4 EFFECT OF BREACH AND RIGHT TO TERMINATE LEASE

A breach of this Lease Addendum shall give each party all the rights contained herein, as well as the rights in the Lease. A material breach of this Lease Addendum shall be considered a material breach of the Lease and grounds for enforcement actions, including eviction, by the Landlord. Tenant acknowledges that a breach of this Lease Addendum shall also render Tenant liable to Landlord for the costs of repair to Tenant's apartment unit due to damage from smoke odors or residue.

4.5 DISCLAIMER BY LANDLORD

Tenant acknowledges that Landlord's adoption of this smokefree policy and the efforts to designate Tenant's building as smokefree do not in any way change the standard of care that the Landlord or managing agent would have to a Tenant household to render buildings and premises designated as smokefree any safer, more habitable, or improved in terms of air quality standards than any other rental premises. Landlord specifically disclaims any implied or express warranties that the building, common areas, or Tenant's premises will have any higher or improved air quality standards than any other rental property. Landlord cannot and does not warranty or promise that the rental premises or common areas will be free from secondhand smoke or vapor. Tenant acknowledges that Landlord's ability to police, monitor, or enforce the provisions of this Lease Addendum is dependent in significant part on voluntary compliance by Tenant and Tenant's guests. Landlord shall take reasonable steps to enforce this smokefree policy. Landlord is not required to take steps in response to smoking in violation of

this agreement unless Landlord knows of the smoking or has been given written notice of the smoking. Tenants with respiratory ailments, allergies, or any other physical or mental condition relating to smoke are put on notice that Landlord does not assume any higher duty of care to enforce this Lease Addendum than any other landlord obligation under the Lease.

By initialing below, you acknowledge and agree to the terms in Section 4.

X *EW*

Elsa Woldeyesus

The Residences at Rocky Ridge

5700 Rocky Ridge Landings Drive • Westerville, OH 43081
(614) 855-7675



5. LEASE ADDENDUM: SECURITY DEPOSIT WAIVER

5.1 SECURITY DEPOSIT WAIVER

This Lease Addendum is attached to and becomes a part of the Residential Lease Agreement ("Lease Agreement") between Landlord ("Landlord") and Renter ("You"). Both parties are bound by the terms of this Lease Addendum.

Your Lease Agreement contractually requires that You post a Security Deposit to secure compliance with the terms and conditions of your Lease Agreement. The Security Deposit may be used by Landlord as reimbursement for amounts contractually recoverable from You under your Lease Agreement. Landlord offers to waive the one-time Security Deposit for the term of the Lease Agreement. This waiver does not waive the requirement that You adhere to the terms and conditions of your Lease Agreement. If you have questions, upon your request, Landlord can provide you with an Explanation of Protections, which is incorporated into this Lease Addendum by reference. In the event the current property management contract for the property is terminated, the Landlord may require You to post a Security Deposit.

By signing below, you acknowledge and agree to the terms in Section 5.

X *Elsa Woldeyesus*

Lessee

IP Address: 107.122.161.48
09/30/2023 05:48pm EDT

The Residences at Rocky Ridge

5700 Rocky Ridge Landings Drive • Westerville, OH 43081
(614) 855-7675



6. Lease Addendum: Tenant Legal Liability 20K

6.1 TENANT LIABILITY PROTECTION PROGRAM

TENANT LIABILITY PROTECTION PROGRAM

☐ YES - \$19.95 per month

\$20,000 replacement value protection to loss of Your personal property (subject to a \$250 deductible) **\$100,000** tenant legal liability protection, *including bodily injury (\$10,000 sublimit)*

If you do not check "YES" and desire to purchase renter's insurance from a third-party insurer on a form acceptable to the Landlord and listing the Landlord as an "Additional Insured," you will still be insured and charged the \$20 monthly fee for Tenant Liability Protection Program described above, until you bring a copy of your third-party insurance into the leasing office for Landlord's review and approval. When the third-party insurance becomes Landlord approved, the \$20 Tenant Liability Protection Program monthly fee, referenced above, will no longer be charged, beginning the following month.

6.2 THIS LEASE ADDENDUM IS ATTACHED TO AND BECOMES A PART OF THE RESIDENTIAL LEASE AGREEMENT

This Lease Addendum is attached to and becomes a part of the Residential Lease Agreement ("Lease Agreement") between Landlord ("Landlord") and Renter ("You"). Both parties are bound by the terms of this Lease Addendum.

You are required to maintain minimum required coverage for the benefit of the Landlord. In lieu of obtaining this insurance through a third party, the Landlord is willing to provide limited protection for you for a monthly fee. This protection includes limited coverage for your personal property as well as for certain legal liability. Although by selecting either of these options, your Landlord is willing to waive the requirement that you maintain a standard HO4 renter's insurance policy, the protections offered through these options may be narrower than those provided through an HO4 policy. If you have questions or would like more details about the protections offered by the Landlord, upon your request, Landlord can provide you with an Explanation of Protections, which is incorporated into this Lease Addendum by reference.

By signing below, you acknowledge and agree to the terms in Section 6.

X *Elsa Woldeyesus*

Lessee

IP Address: 107.122.161.48
09/30/2023 05:48pm EDT

The Residences at Rocky Ridge

5700 Rocky Ridge Landings Drive • Westerville, OH 43081
(614) 855-7675



7. Sign and Accept

7.1 SIGN AND ACCEPT

I have read and received a copy of **The Residences at Rocky Ridge LLC** Rules and Regulations. I understand that these rules are an extension of my lease. Any violation of these rules may be grounds for lease termination.

X *Elsa Woldeyesus*

Lessee

IP Address: 107.122.161.48
09/30/2023 05:49pm EDT

X *Louis J. Santangelo*

Lessor

IP Address: 71.74.230.165
09/30/2023 09:08pm EDT